

Sathivada Sireesha Jamuna, vs Pothala Srinivasa Rao, on 4 April, 2025

APHC010059172025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

FRIDAY ,THE FOURTH DAY OF APRIL
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 39/2025

Between:

Sathivada Sireesha @ Jamuna,

...PETITIONER

AND

Pothala Srinivasa Rao

...RESPONDENT

Counsel for the Petitioner:

1. K.S.G. PADMAVATHI

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

Today when the matter is taken up for hearing, Smt. K.S.G.Padmavathi, learned counsel for the petitioner has represented that the proof of service memo along with the postal track consignment sheet is filed before the Registry and the same is placed on the record. As per the said postal track consignment sheet, the registered notice sent to the respondent by the learned counsel for the petitioner was served on him on 27.03.2025. But, none appeared for the respondent. Therefore, service held sufficient

2. The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam and transfer the same to the Family Court, Srikakulam.

3. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and their marriage has been performed at Vizianagaram District on 28.02.2024. In view of the matrimonial disputes between both the parties, the petitioner/wife is staying at her parents' house at Patrunivalasa Village, Srikakulam District. The petitioner pleaded that she had lodged a complaint before the Mahila Urban Police Station, Srikakulam, under Section 85 of BNS and under Sections 3 & 4 of the Dowry Prohibition Act vide Cr.No.112 of 2024 and the same was numbered as C.C.No.1084 of 2024, on the file of the Judicial First Class Magistrate, Srikakulam, Srikakulam District and the same is pending. The petitioner further pleaded that she had also filed a Maintenance Case vide M.C.No.35 of 2024, on the file of the Additional Judicial First Class Magistrate Court, Srikakulam, Srikakulam District and a Domestic Violence Case, on the file of the Additional Judicial Magistrate of First Class (Prohibition & Excise) at Srikakulam and the respondent/husband is attending the court proceedings in the aforesaid cases before the competent courts at Srikakulam. The petitioner contend that to cause inconvenience to her, the respondent/husband filed F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam, under Section 12(1)(ia) of the Hindu Marriage Act, 1955 seeking for nullity of marriage. II. Learned counsel for the petitioner further contended that the petitioner being a woman, depending upon her parents, it is very difficult for her to travel at a distance of more than 100Kms from Patrunivalasa Village, Srikakulam to Visakhapatnam without any male support and that she was constrained to file the present petition against the respondent/husband seeking to withdraw F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam and transfer the same to the Family Court, Srikakulam.

4. Heard Smt. K.S.G.Padmavathi, learned counsel for the petitioner. Though notice has been served on the respondent, none appeared for the respondent. Perused the material available on record.

5. The material on record prima facie goes to show that the petitioner/wife had filed a criminal case against the respondent/husband vide Cr.No.112 of 2024 and the same was numbered as C.C.No.1084 of 2024, on the file of the Judicial First Class Magistrate, Srikakulam, Srikakulam District and a Maintenance Case vide M.C.No.35 of 2024, on the file of the Additional Judicial First Class Magistrate Court, Srikakulam, Srikakulam District and a Domestic Violence Case, on the file of the Additional Judicial Magistrate of First Class (Prohibition & Excise) at Srikakulam, wherein the respondent/husband is attending the Court proceedings in the aforesaid cases. The respondent/husband has filed F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam, under Section 12(1)(ia) of the Hindu Marriage Act, 1955 seeking for nullity of marriage.

6. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha1 held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic

soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

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7. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case law that in matrimonial proceedings, the convenience of the wife has to be considered than that of the inconvenience of the husband. Therefore, this Court is of the considered view that there are grounds to consider the request of the petitioner/wife to withdraw F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam and transfer the same to the III Additional District Judge-Cum-Family Court, Srikakulam.

8. In the result, the present petition is allowed and F.C.O.P.No.1540 of 2024, on the file of the Family Court at Visakhapatnam, is hereby withdrawn and transferred to the III Additional District Judge-Cum-Family Court, Srikakulam. The Family Court at Visakhapatnam, shall transmit the case record in F.C.O.P.No.1540 of 2024 to the III Additional District Judge-Cum- Family Court, Srikakulam duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

04.04.2025 SRT JUSTICE V.GOPALA KRISHNA RAO Date: